



File No.: EXP202402279

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated June 24, 2024, and based on the following

FACTS

FIRST: On June 24, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202402279, proceeding to archive the prior investigation proceedings. This resolution was notified to the appellant on June 26, 2024, as recorded in the acknowledgment of receipt in the file.

SECOND: The appellant submitted on July 23, 2024, to this Spanish Agency for Data Protection, a recourse for reconsideration, fundamentally based on the following: The claimant requested from the respondent a copy of the informed consent that they signed to undergo surgery, through the Office for the Defense of Health Users' Rights, receiving a response from the respondent with a series of reports, in which said consent was not included. Within the referred file, the claimant reiterates their request for access to a copy of the report (informed consent) and a copy of the report of the results of the analysis performed before the surgery, on March 26, 2022, through said Office. The respondent replied on April 19, 2022, that they do not have said document, due to reasons beyond their control. On May 19, 2022, the respondent communicated to the Office for the Defense of Health Users' Rights that, on February 6, 2020, they suffered a flood caused by a neighbor's leak, which severely affected a large number of medical records, including that of the claimant, and therefore the said consent cannot be recovered, providing documentation to substantiate this fact, and delivering to the claimant a standard consent form similar to the one they signed, but unfilled. The claimant wishes to point out that the respondent took time to inform them of the existence of the flood, and that it would have been difficult for them to have communicated this to this Agency prior to the expiration of two years, if they were unaware of it.

Therefore, they wish to request that the statute of limitations begin to count from the date they became aware of the flood, that is, June 2, 2022, when the Office for the Defense of Health Users' Rights communicated it to them, after having been informed by the respondent, and adds that there is no record that it has been communicated to the rest of the affected parties.

LEGAL GROUNDS

I

Competence

The Presidency of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, it should be noted that this issue was already addressed in the archived resolution now being challenged, when it was pointed out that security measures require that entities processing personal data can guarantee the integrity and availability of the same, which could not be guaranteed as a document that was part of the medical record was irretrievably damaged on February 6, 2020. Article 83.4.a) of the GDPR establishes:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;”

In turn, Article 73.f) qualifies as a serious infringement for the purposes of prescription:
“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall prescribe after two years: violations that constitute a substantial breach of the articles mentioned therein and, in particular, the following:

(...)

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f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, in the terms required by Article 32.1 of Regulation (EU) 2016/679.”

The possible infringing action of the respondent would be time-barred by the passage of the two-year statute of limitations for serious infringements, as indicated by Article 73 of the LOPDGDD, starting from the moment when the security measures were breached and part of the medical documentation that was part of the claimant's medical history was irretrievably damaged.

It should be noted that the claim was filed after the statute of limitations for the possible infringement committed by the respondent had expired.

Regarding the time elapsed until the flooding was communicated, it should be noted that Article 34 of the GDPR establishes that:

“1. When a personal data breach is likely to result in a high risk to the rights and freedoms of natural persons, the controller shall communicate the breach to the data subject without undue delay.

(...)

3. The communication to the data subject referred to in paragraph 1 shall not be necessary if any of the following conditions are met:

- a) the controller has implemented appropriate technical and organizational protection measures and those measures have been applied to the personal data affected by the personal data breach, in particular those that render the personal data unintelligible to any person not authorized to access it, such as encryption;
- b) the controller has taken subsequent measures that ensure that the high risk to the rights and freedoms of the data subject referred to in paragraph 1 is no longer likely to materialize;
- c) it would involve a disproportionate effort. In this case, a public communication or a similar measure shall be adopted to inform the data subjects in an equally effective manner.

4. When the controller has not yet communicated the personal data breach to the data subject, the supervisory authority, after considering the likelihood that such a breach will result in a high risk, may require the controller to do so or may decide that one of the conditions mentioned in paragraph 3 is met.”

On the other hand, Article 74 of the LOPDGDD establishes that the following are minor infringements and shall be time-barred after one year:

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“ñ) The failure to comply with the duty to communicate to the affected party a personal data breach that entails a high risk to the rights and freedoms of the affected parties, in accordance with the requirements of Article 34 of Regulation (EU) 2016/679, unless the provisions of Article 73 s) of this organic law apply.”

Consequently, this action would also be time-barred, as the one-year period since the flooding occurred has elapsed.

III

Conclusion

Therefore, in this appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

IV

Late Resolution

Due to operational reasons of the administrative body, therefore not attributable to the appellant, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the effect of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on June 24, 2024, in file EXP202402279.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations,

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Public (LPACAP), interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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